



GENERAL CONSTRUCTION PERMIT

Oil and Gas Industry

Routine or Predictable Gas Venting Emissions

Permit Number GP11 Issuance 3

Final Approval

July 23, 2025

Bradley Eades, PE

Date Issued

Oil and Gas Permitting Section Supervisor

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Note: See the Routine or Predictable Gas Venting Emissions Calculation and Instructions on Permitting for Oil and Gas Operations Guidance document (PS Memo 20-04) for further information on definitions, and emission calculations.

This permit is granted by the Colorado Department of Public Health and Environment, Air Pollution Control Division (Division) subject to all rules and regulations of the Colorado Air Quality Control Commission and the Colorado Air Pollution Prevention and Control Act C.R.S., sections 25-7-101, et seq, to those general terms and conditions included in this permit and the following specific terms and conditions:

I. General Permit Applicability

I.A. This general permit may be used for any oil and gas industry well production facility or centralized production facility, and the associated oil well(s) or natural gas well(s), that meets all of the requirements in this Section and that can comply with all of the applicable conditions described in this permit.

I.A.1. Included Emission Activities: The following emitting activities may register for this general permit:

I.A.1.a. Fixed roof storage tank-related routine or predictable gas venting emissions events that are not separately permitted:

- releasing emissions from a fixed-roof storage tank through a storage tank thief hatch, blowdown valve, venting point, or other access point for any routine or predictable activity, including for liquid level measurement, sampling, truck loadout, well unloading, equipment maintenance, repair, decommissioning, or other routine or predictable activity; and
- tank hot oil treatments or other tank cleaning activities.

I.A.1.b. Well-related routine or predictable gas venting emissions events



that are not separately permitted, including but not limited to:

- well liquids unloading;
- downhole well maintenance, including well workovers, recompletion, restimulation, reperforating, paraffin/scale removal, swabbing, and installation of artificial lift;
- well equipment maintenance at the surface;
- well plugging;
- bradenhead gas venting;
- casinghead gas venting; and
- other well-related routine or predictable gas venting emissions activities.

I.A.1.c. Pigging-related routine or predictable gas venting emissions that are not separately permitted, including, but not limited to:

- pig launchers; and
- pig receivers.

I.A.1.d. Routine or predictable blowdowns of facility equipment or piping that are not separately permitted, including but not limited to:

- pipeline venting within the facility boundary when such venting is routine or predictable;
- compressor and turbine blowdowns;
- scrubber and strainer blowdowns;
- blowdowns resulting from facility-wide (plant) and/or



equipment shutdowns;

- blowdown of all other equipment (including pipelines, compressor case or cylinders, manifolds, suction bottles, discharge bottles, and vessels); and
- desiccant dehydration unit blowdowns.

I.A.1.d.(i) Emissions resulting from blowdowns from facility equipment or piping where the physical volume between isolation valves is less than 50 cubic feet are not required to be reported or permitted with this category.

I.A.1.e. Combustion devices, vapor recovery units, catalysts, or other Division-approved air pollution control equipment used to reduce emissions (from the emitting activities registered under this general permit) below the limits specified in Section II.

I.A.2. Excluded Sources: The following types of facilities, facility classifications, and emitting activities may not register for this general permit:

I.A.2.a. A natural gas processing plant.

I.A.2.b. A natural gas compressor station.

I.A.2.c. A petroleum refinery.

I.A.2.d. A facility that is a major source as defined in Regulation Number 3, Part A, Section I.B.30., except as provided by Section I.A.3. below.

I.A.2.e. A facility that is a major stationary source as defined in Regulation Number 3, Part D, Section II.A.25., except as provided by Section I.A.3. below.

I.A.2.f. Emissions at a storage tank that are not listed in Section I.A.1.a.



of this general permit.

I.A.2.g. Venting emissions from a storage tank that are prohibited by Regulation Number 7, Part B, Section II.C.2.a.

I.A.2.h. This general permit may not be used for newly constructed or modified existing equipment that is part of a project permit action that is subject to Non-Attainment New Source Review (NA NSR) or Prevention of Significant Deterioration (PSD) permitting under Regulation Number 3, Part D.

I.A.3. Stationary Sources that: a) became subject to Title V Operating Permit requirements or became classified as an existing major stationary source due to the reclassification of the 8-hour Ozone Control Area from serious to severe, and b) for which a complete GP11 registration request was received by the Division prior to the effective date of GP11, Issuance 2 (November 3, 2022), may continue to operate under this General Permit. 8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024).

I.A.4. Stationary Sources that became subject to Title V Operating Permit requirements or became classified as an existing major stationary source for which a GP11 registration request was deemed complete by the Division prior to the effective date (July 24, 2024) on which Northern Weld County was re- classified from moderate to serious may continue to operate under this General Permit. Northern Weld County is as defined in Regulation Number 7, Part A, Section II.A.3. (Adopted 12/14/2023, Effective 02/14/2024).

I.B. This general permit applies only to the oil and gas facility and the emitting activities described in Section I.A for which the operator has registered under this general permit using an Air Pollutant Emission Notice (APEN) Form APCD-213 and APCD-215, as needed. Emissions sources that do not fall into the activities described in Section I.A

at the same stationary source must be permitted separately as required by Regulation Number 3, Part B.

II. Emission Limitation Requirements

II.A. General Permit Emission Limitations

II.A.1. Actual emissions from the sum of all of the emitting activities registered under this general permit must not exceed the requested federally enforceable annual emission limitations (tons per year) as listed on the general permit registration approval letter, or if an approval letter has not been issued, as certified by the owner or operator in the APEN included with the general permit registration. (Regulation Number 3, Part B, Sections II.A.4. and II.A.7.)

II.A.2. For emitting activities registered under this general permit that are registered with a control efficiency, the owner or operator must conduct the activities with the air pollution control equipment as listed in the general permit registration APEN to reduce emissions to less than or equal to the requested federally enforceable annual emission limitations (tons per year) as listed on the general permit registration approval letter, or if an approval letter has not been issued, as certified by the owner or operator in the general permit registration APEN. (Regulation Number 3, Part B, Sections II.A.4. and II.A.7.)

II.A.2.a. For a combustion device controlling routine or predictable gas venting emissions, the maximum allowed control efficiency is 95%.

II.B. Facility-Wide Emission Limitations

II.B.1. For **facilities located inside** of the 8-hour Ozone Control Area (8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024)):



II.B.1.a. The maximum allowable emissions of criteria air pollutants from all APEN-reportable emissions points at the same stationary source (including the routine or predictable gas venting emissions registered to this permit) shall be federally enforceable and must not exceed the following limitations (Regulation Number 3, Part B, Section II.A.4):

■ Particulate Matter (PM):	90.0 tons per year
■ Particulate Matter (PM ₁₀):	90.0 tons per year
■ Particulate Matter (PM _{2.5}):	90.0 tons per year
■ Sulfur Dioxide (SO ₂):	90.0 tons per year
■ Nitrogen Oxides (NO _x):	45.0 tons per year
■ Carbon Monoxide (CO):	90.0 tons per year
■ Volatile Organic Compounds (VOC):	45.0 tons per year

For sources that are also subject to Condition II.B.4. or II.B.5., the owner or operator must comply with the most stringent limits for each pollutant.

II.B.1.b. If the permitted facility-wide emissions at the same stationary source (including the routine or predictable gas venting emissions registered under this permit) of VOC and/or NO_x exceeds 40.0 tons per year, the owner or operator must track emissions from all insignificant activities at the facility on an annual basis to demonstrate compliance with the **facility emission limitations** as indicated below. An inventory of each insignificant activity and associated emission calculations must be made available to the Division for inspection upon request. For the purposes of this condition, insignificant activities are defined as any activity or



equipment, which emits any amount but does not require an Air Pollutant Emission Notice (APEN) or is permit exempt. (Regulation Number 3, Part C. Section II.E.)

For all facilities located inside of the 8-hour Ozone Control Area (8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024)), total potential emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

- 50 tons per year of VOC; and
- 50 tons per year of NO_x.

II.B.2. For facilities located outside of the 8-hour Ozone Control Area (8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024)):

II.B.2.a. The maximum allowable emissions of criteria air pollutants from all APEN-reportable emissions points at the same stationary source (including the routine or predictable gas venting emissions registered to this permit) must be federally enforceable and must not exceed the following limitations (Regulation Number 3, Part B, Section II.A.4):

- | | |
|--|--------------------|
| ■ Particulate Matter (PM): | 90.0 tons per year |
| ■ Particulate Matter (PM ₁₀): | 90.0 tons per year |
| ■ Particulate Matter (PM _{2.5}): | 90.0 tons per year |
| ■ Sulfur Dioxide (SO ₂): | 90.0 tons per year |
| ■ Nitrogen Oxides (NO _x): | 90.0 tons per year |



- Carbon Monoxide (CO): 90.0 tons per year
- Volatile Organic Compounds (VOC): 90.0 tons per year

For sources that are also subject to Condition II.B.4. or II.B.5., the owner or operator must comply with the most stringent limits for each pollutant.

II.B.3. The maximum allowable emissions of hazardous air pollutants (HAPs) from all emissions points at the stationary source are federally enforceable and must not exceed the following limitations (Regulation Number 3, Part B, Sections II.A.4. and II.A.7.):

- Each Individual HAP: 8.0 tons per year
- Combined total of all HAPs: 20.0 tons per year

II.B.4. The owner or operator of facilities located in an area classified as serious nonattainment for ozone, and which are not otherwise subject to Conditions I.A.3. or I.A.4. of this permit, must track potential emissions from all insignificant activities at the facility on an annual basis to demonstrate compliance with facility emission limitations as indicated below. An inventory of each insignificant activity and associated emission calculations must be made available to the Division for inspection upon request. For the purposes of this condition, insignificant activities are defined as any activity or equipment, which emits any amount of VOC or NO_x but does not require an APEN or is permit exempt. Note that for reclassifications of an existing nonattainment area to serious, the limit applies upon the effective date of reclassification. (Regulation Number 3, Part B. Section III.E.).



II.B.4.a. Total point source potential emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC): 50 tons per year

Nitrogen Oxides (NO_x): 50 tons per year

II.B.5. The owner or operator of facilities located in an area classified as severe nonattainment for ozone, and which are not otherwise subject to Conditions I.A.3. or I.A.4. of this permit, must track potential emissions from all insignificant activities at the facility on an annual basis to demonstrate compliance with facility emission limitations as indicated below. An inventory of each insignificant activity and associated emission calculations must be made available to the Division for inspection upon request. For the purposes of this condition, insignificant activities are defined as any activity or equipment, which emits any amount of VOC or NO_x but does not require an APEN or is permit exempt. Note that for reclassifications of an existing nonattainment area to severe, the limit applies upon the effective date of reclassification. (Regulation Number 3, Part B. Section III.E.)

II.B.5.a. Total potential emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC): 25 tons per year

Nitrogen Oxides (NO_x): 25 tons per year

II.C. Emission Limitations and Facility-Wide Emission Limitations for both criteria and hazardous air pollutants must be determined on an annual calendar-year basis. The permit holder must keep a compliance record on-site or at a local field office for Division review.



II.D. For sources located at synthetic minor or major facilities, compliance with the General Permit Emission Limitations and Facility-Wide Emission Limitations for both criteria and hazardous air pollutants must be determined on a rolling twelve (12) month total basis. By the end of each month, a new twelve-month total is calculated based on the previous twelve month's data. During the first year of operation, compliance must be based upon cumulative emissions from all months of operation. The permit holder must calculate actual emissions each month and keep a compliance record on-site or at a local field office for Division review.

III. Operating Terms and Conditions

III.A. Emission Calculation Methods

III.A.1. Emissions must be calculated using the emission factors as shown on the GP11 registration approval letter most recently issued by the Division. If a GP11 registration approval letter has not yet been issued, emissions must be calculated using the emission factors as certified by the owner or operator in the general permit registration APEN.

III.A.2. The owner or operator must monitor and record the data necessary to quantify the emissions for each category listed in this permit. These records of the events must be maintained in accordance with the Recordkeeping Plan specified in Section V.

III.A.2.a. For sources calculating emissions using a lb/event emission factor, the owner or operator must monitor and record the number of routine or predictable gas venting emissions events that occur for each activity type registered to this permit.

III.A.2.b. For sources calculating emissions using a lb/MMscf emission factor, the owner or operator must:

- Monitor and record the parameters required to calculate the volume associated with each routine or predictable gas



venting emission event, as specified in the general permit registration approval letter, or

- Monitor and record the volume associated with each routine or predictable gas venting emission event using a flow meter.

III.A.3. For each routine or predictable gas venting emissions activity registered under this general permit, actual emissions must be calculated using the emission factors from III.A.1. and the data from III.A.2.

III.B. General Operating Conditions

III.B.1. The owner or operator must comply with opacity requirements in Regulation Number 1, Section II.A., as applicable per the most current version of Regulation Number 1.

III.B.2. This source is subject to the odor requirements of Regulation Number 2.

III.B.3. Air pollution control equipment may be used to comply with the emission limits and performance standards required in this general permit. The owner or operator must maintain documentation of all periods when air pollution control equipment is not operating and must use the information to determine appropriate control percentages in calculating actual emissions. During periods where air pollution control equipment is not operating, emissions must be calculated as uncontrolled.

III.B.4. If air pollution control equipment is used to comply with the emission limits of this permit, the owner or operator must follow the Operating and Maintenance Plan specified in Section IV. (Regulation Number 3, Part B, Section III.I.6.)

III.B.5. The owner or operator must maintain records in accordance with the Recordkeeping Plan specified in Section V.



- III.B.6. The owner or operator must use best management practices to minimize hydrocarbon emissions during, or to reduce the frequency of, routine or predictable gas venting emissions events.
 - III.B.6.a. The owner and operator must develop and maintain a description of best management practices implemented to minimize hydrocarbon emissions during, or to reduce the frequency of, routine or predictable gas venting events covered by this permit. The description must also include how those best management practices are implemented and performed.
- III.B.7. The owner or operator must perform routine or predictable gas venting emissions activities between October 1 and April 30, when practicable.
- III.B.8. The owner or operator must avoid performing routine or predictable gas venting emissions activities on Ozone Action Days, when practicable. Ozone Action Day advisories are published by the Colorado Department of Public Health and Environment.
- III.B.9. For downhole well maintenance, well liquids unloading events, and well plugging activities:
 - III.B.9.a. Owners or operators must use best management practices to minimize hydrocarbon emissions and the need for emissions from the well associated with downhole well maintenance, well liquids unloading, and well plugging, unless emitting is necessary for safety. (Regulation Number 7, Part B, Section II.G.1.)
 - III.B.9.a.(i) Prior to January 1, 2023, during liquids unloading events, any means of creating differential pressure must first be used to attempt to unload the liquids from the well without emitting. If these methods are not successful in unloading the liquids from the well, the well may emit in



order to create the necessary differential pressure to bring the liquids to the surface. (Regulation Number 7, Part B, Section II.G.1.a)

- III.B.9.a.(ii) The owner or operator must be present on-site during any planned downhole well maintenance, well liquids unloading, or well plugging event and must ensure that any emissions from the well associated with the event are limited to the maximum extent practicable. (Regulation Number 7, Part B, Section II.G.1.b)
- III.B.9.a.(iii) Beginning January 1, 2023, for all downhole well maintenance and well liquids unloading activities with emissions to atmosphere, owners or operators must, consistent with well site conditions and good engineering practices (Regulation Number 7, Part B, Section II.G.1.c):
- Use best engineering practices in the design and construction of oil and gas wells and well production facilities that commence operation after January 1, 2023, to minimize the need for well liquids unloading with emissions to atmosphere and other downhole well maintenance as the well ages.
 - Attempt to create differential pressure to unload the liquids from the well without emitting.
 - Monitor wellhead pressure and/or flowrate of the vented natural gas.
 - Equalize the wellhead pressure with the production separator pressure prior to conducting



unloading, swabbing, or maintenance activities, when practicable.

- Close wellhead vents to the atmosphere or otherwise end direct emission of natural gas to atmosphere as soon as practicable.
- Minimize emissions to atmosphere from well liquids unloading and well swabbing, through the installation, use, and optimization of artificial lift, such as plunger lift with smart automation, except as provided in Regulation Number 7, Part B, Sections II.G.1.c.(vi)(A) through II.G.1.c.(vi)(D)

III.B.9.a.(iv) Beginning January 1, 2023, unless exempted in Regulation Number 7, Part B, Sections II.G.1.d.(i) or II.G.1.d.(ii), owners or operators must use capture and recovery techniques or install and use a control device to achieve at least 95% control of hydrocarbon emissions during well liquids unloading and well swabbing operations. Notwithstanding any provision in Section II.B. to the contrary, owners or operators may use open flares and portable combustion devices to comply with this Section II.G.1.d. (Regulation Number 7, Part B, Section II.G.1.d)

III.B.10. The owner or operator, or authorized third party representative, must:

- Comply with storage tank measurement system requirements of Regulation Number 7, Part B, Section II.C.4. if the facility meets the applicability criteria of Regulation Number 7, Part B, Section II.C.4.a.;
- Comply with storage tank hydrocarbon liquids loadout requirements of



Regulation Number 7, Part B, Section II.C.5.a. if the facility meets the applicability criteria of Regulation Number 7, Part B, Section II.C.5.a.;

- Remain on site while a storage tank thief hatch is open if there are liquids in the tank, if the thief hatch was opened to perform routine or predictable emitting activities; and
- Minimize the duration of time the thief hatch is open during activities to determine the quality and/or quantity of storage tank contents.

III.B.11. For pigging-related activities, the owner or operator must install, operate and maintain a liquids handling system to remove any accumulated liquid prior to pig receiver depressurization.

III.B.12. For equipment blowdowns, the owner or operator must avoid blowing down the equipment completely to ambient pressure, where practicable.

III.B.13. Conditions III.B.6. through III.B.12. fulfill the requirements to apply Reasonably Available Control Technology of Regulation Number 3, Part B, Section III.D.2.

IV. Operating and Maintenance Plan

IV.A. If air pollution control equipment is used to comply with the emission limits of this permit, the owner or operator must comply with the following requirements:

IV.A.1. Air pollution control equipment must be adequately designed and sized to achieve the control efficiency rates and to handle reasonably foreseeable fluctuations in gas quantity and/or composition during emitting activities. Additionally, the air pollution control equipment must be operated and maintained consistent with manufacturer specifications and good engineering and maintenance practices. The owner or operator must keep manufacturer specifications or equivalent on file for Division review.

IV.A.2. If a combustion device is used to comply with the emission limits of this



permit, it must have a design destruction efficiency of at least 98% for hydrocarbons, and must achieve a hydrocarbon control efficiency of 95%.

- IV.A.3. If an enclosed combustion device or open flare is used to control emissions of VOCs and other hydrocarbons, it must be equipped with and operate an auto-igniter, have no visible emissions during normal operation, and be designed so that an observer can, by means of visual observation from the outside of the enclosed combustion device, or by other means approved by the Division, determine whether it is operating properly.
- IV.A.4. During air pollution control equipment use, the owner or operator must monitor proper operation of the air pollution control equipment. This monitoring must occur at least once each day that air pollution control equipment is in use to control the emitting activities registered under this general permit.
- IV.A.4.a. Indications of improper operation for combustion devices can include, but are not limited to, absence of auto-igniter or pilot light, malfunction of electronic ignition, valves for piping of pilot gas or waste gas to the control device not being open, or presence of smoke. A check box is suitable for recording proper operation.
- IV.A.4.b. Improper operation of air pollution control equipment must be further documented with a description of the problem and its resolution, the date range the control equipment was inoperable, and the uncontrolled mass of emissions during the downtime.
- IV.A.4.c. Inspections can be done by either visible observation or other means approved by the Division.
- IV.A.5. For each separate air pollution control equipment, the owner or operator must keep an air pollution control equipment maintenance log. The log must display the date, time, and nature of each air pollution control

equipment maintenance activity. The air pollution control equipment maintenance log may also be located at a local office or electronically, and must be made available to the Division upon request.

V. Recordkeeping Plan

V.A. The following records must be maintained on site or at a local field office with site responsibility for Division review:

- V.A.1. The current issuance of this general construction permit.
- V.A.2. The most recent general permit registration approval letter, once received.
- V.A.3. The APEN most recently submitted to the Division and any required site-specific emission factor documentation.
- V.A.4. Records of actual emissions from all emitting activities. This must include the most currently available emitting activity data necessary to calculate emissions, and documentation of all periods of control device downtime for emitting activities where a control device is used to comply with the emission limits of this permit.
 - V.A.4.a. For sources located at true minor facilities, actual emissions must be calculated on an annual calendar-year basis.
 - V.A.4.b. For sources located at synthetic minor or major facilities, actual emissions must be calculated on a rolling twelve (12) month total. By the end of each month, the actual emissions for that month are calculated and a new twelve-month total is calculated based on the previous twelve months of emission data.
- V.A.5. For downhole well maintenance, well liquids unloading events, and well plugging, the records and reporting required by Regulation Number 7, Part B, Sections II.G.2 and II.G.3.

V.A.6. The air pollution control equipment maintenance log for each control device if air pollution control equipment is used to comply with the emission limits of this permit.

V.A.7. Description of the best management practices used to minimize hydrocarbon emissions or to reduce the frequency of routine or predictable gas venting emissions, including how those best management practices are implemented and performed.

V.A.8. Any other records required by conditions of this permit.

V.B. Records may be kept in either electronic format or hard copy, provided that they can be promptly supplied to the Division upon request. All records must be retained for a period of five (5) years.

VI. Monitoring Requirements for Facilities located in Disproportionately Impacted (DI) Communities

VI.A. Owners or operators of new or modified sources located in Disproportionately Impacted Communities must submit a notification at the time of registration for a general permit or permits issued pursuant to Regulation Number 3, Part B, Section III.I. indicating the source will comply with the monitoring requirements outlined in Regulation Number 3, Part B, Section III.J., as applicable, by either:

VI.A.1. Complying with source-specific monitoring pursuant to Section III.J.2. of Part B;

VI.A.2. Paying community monitoring fees pursuant to Section III.J.3. of Part B; or

VI.A.3. Complying with well production facility monitoring pursuant to Section III.J.4. of Part B.

Owners or operators must comply with the monitoring methodology selected on the general permit registration form.

VI.B. Owners or operators subject to VI.A.1 must submit a Division-approved source-specific monitoring plan as part of a complete registration request. (Regulation Number 3, Part B, III.E.)

VII. General Permit Registration Approval Process

VII.A. Conditional certification of a registration under this general permit is effective from the date the registration is deemed complete as indicated in Condition VII.B. A complete registration request consists of all General Permit application materials required by the Division and associated fees. The owner or operator may commence construction and operation of the emitting activities as represented in the registration once the registration is deemed complete. In the event the source does not qualify for registration under the general permit the owner or operator accepts the liability of commencing these activities.

VII.B. The Division will determine completeness of the General Permit registration request within sixty (60) days of the date of receipt of the request and provide written notification to the applicant. If the applicant does not receive notification of a completeness determination from the Division within sixty (60) days, the General Permit registration request will be deemed complete for the purpose of Conditions VII.A and VII.B.

VII.C. The Division has ninety (90) calendar days from the date the Division receives a complete General Permit registration request to provide the applicant with a written approval or denial of the registration.

VIII. General Permit Terms and Administration

VIII.A. A facility that is classified as a major source for Title V Operating Permit requirements and is operating under Condition I.A.2.h must submit a Title V permit application requesting to incorporate the terms of this general permit into a Title V Operating Permit. The due date for this application is one year from the date on which the facility becomes subject to Title V Operating Permit requirements.



VIII.B. In accordance with Colorado Regulation Number 3, Part C, Section V.C.5, some or all of the monitoring specified in this general permit will be incorporated as specific conditions in the source's Title V Operating Permit (if applicable). Additional monitoring not listed in this general permit may be included in the source's Operating Permit in order to satisfy the periodic monitoring requirements of Section V.C.5.b.

VIII.C. General Terms

VIII.C.1. A revised APEN must be filed: (Reference: Regulation Number 3, Part A, Section II.C.)

VIII.C.1.a. Annually by April 30th of the year following a significant increase in emissions as follows:

- For VOC, a change in actual emissions of five (5) tons per year or more, above the level reported on the last APEN; or
- For volatile organic compounds and nitrogen oxides sources in ozone non-attainment areas, a change in annual actual emissions of one ton per year or more or five percent, whichever is greater, above the level reported on the last APEN submitted to the Division; or
- For any non-criteria reportable pollutant, if the emissions increase by 50% or five (5) tons per year, whichever is less, above the level reported on the last APEN.

VIII.C.1.b. Whenever there is a change in the owner or operator of any facility, process, or activity; or

VIII.C.1.c. Whenever new control equipment is installed, or whenever a different type of control equipment replaces an existing type of control equipment; or

- VIII.C.1.d. Whenever a permit limitation must be modified; or
- VIII.C.1.e. No later than 30 days before the existing APEN expires.
- VIII.C.2. The submittal of an APEN requesting a GP11 registration satisfies the requirement for the applicant to give notice to the Division for the commencement of operation. (Regulation Number 3, Part B, Section III.G.1.)
- VIII.C.3. The requirements of Regulation Number 3, Part D apply at such time that any stationary source or modification becomes a major stationary source or major modification solely by virtue of a relaxation in any enforceable limitation that was established after August 7, 1980 on the capacity of the source or modification to otherwise emit a pollutant, such as a restriction on hours of operation. (Regulation Number 3, Part D, Sections V.A.7.b. and VI.B.4.)
- VIII.C.4. Sources covered by this General Permit are subject to the Common Provisions Regulation Part II, Subpart E, Affirmative Defense Provision for Excess Emissions During Malfunctions. The owner or operator must notify the Division of any malfunction condition which causes a violation of any emission limit or limits stated in this permit as soon as possible, but no later than noon of the next working day, followed by written notice to the Division addressing all of the criteria set forth in Part II.E.1 of the Common Provisions Regulation.
- VIII.C.5. This permit is granted subject to all rules and regulations of the Colorado Air Quality Control Commission and the Colorado Air Pollution Prevention And Control Act C.R.S., sections 25-7-101, et seq, to those general and specific terms and conditions included in this document.
- VIII.C.6. Unless specifically stated otherwise, the general and specific conditions contained in this permit have been determined by the Division to be



necessary to assure compliance with the provisions of §25-7-114.5(7)(a), C.R.S.

- VIII.C.7. Each and every condition of this permit is a material part hereof and is not severable. Any challenge to or appeal of a condition herein by the permittee will constitute a rejection of the entire permit and upon such occurrence, this permit must be deemed denied ab initio.
- VIII.C.8. Section 25-7-114.7(2)(a), C.R.S. requires that all sources required to file an Air Pollutant Emission Notice (APEN) must pay an annual fee to cover the costs of inspections and administration.
- VIII.C.9. Violation of the terms of a permit or of the provisions of the Colorado Air Pollution Prevention and Control Act or the regulations of the AQCC may result in administrative, civil or criminal enforcement actions under §§25-7-115 (enforcement), -121 (injunctions), -122 (civil penalties), -122.1 (criminal penalties), C.R.S.
- VIII.C.10. Registration under this permit is approved in reliance upon the accuracy and completeness of information supplied by the owner or operator and is conditioned upon operation of the source in accordance with this information and with representations made by the owner or operator or owner or operator's agents. It is valid only for the equipment and operations or activity specifically identified on the general permit registration.

VIII.D. Registration Revision/Termination

- VIII.D.1. The Division may deny or revoke registration under the general permit under the circumstances specified in Regulation Number 3, Part B, Section III.I.3.c. and require the owner or operator to apply for a construction permit as required by Regulation Number 3, Part B.
- VIII.D.2. A registration under this general permit may be reissued to a new owner by the Division as provided in Regulation Number 3, Part B, Section II.B. upon

request for transfer of ownership and the submittal of a revised APEN, revised general permit registration and the required fees.

- VIII.D.3. Registration under this general permit is voluntary. The owner or operator may withdraw or cancel a registration under this general permit at any time by notifying the Division in writing. The owner or operator can apply for a construction permit as necessary per Regulation Number 3, Part B.

VIII.E. General Permit Revision/Termination

- VIII.E.1. This general permit remains in effect until revised or terminated by the Division in accordance with the provisions of Regulation Number 3.
- VIII.E.2. After public notice and comment as provided by Regulation Number 3, Part B, Section III.I.7., the Division may revise this general permit in order to add or delete requirements or limitations to the permit. This public notice must be conducted in a manner consistent with the provisions of Regulation Number 3, Part B, Section III.C.4.
- VIII.E.3. If the Division revises this general permit, it will provide written notice to affected owners or operators prior to the revision of the general permit. The notice will advise the owner or operators that any existing registration to use the general permit will be automatically converted to a registration to use the revised general permit, provided that the owner or operator continues to meet all requirements of the revised general permit. Persons not wishing to continue coverage under the revised general permit have the option of applying for a Construction Permit as required by Regulation Number 3, Part B, or apply for a different general permit, as appropriate.
- VIII.E.4. If the Division terminates this general permit, it will provide written notice to affected owners or operators prior to the termination of the general permit. The notice will advise the owner or operators that they must apply for a Construction Permit as required by Regulation Number 3, Part B.



VIII.E.5. The Division may require any oil and gas facility authorized by a general construction permit to apply for and obtain an individual permit if circumstances have changed since the time of the original general permit application so that the oil and gas facility is no longer appropriately controlled and/or permitted under the general permit. (Regulation Number 3, Part B, Section III.I.3.c.(i)(B))

Permit History

Issuance	Date	Description
Issuance 1	4 December 2020	Initial issuance
Issuance 2	3 November 2022	Revised to address the 8-hour Ozone Control Area re-classification from serious to severe for existing registrations
Issuance 3	This Issuance	Revised to address: • Revised to address Northern Weld County Area re-classification from moderate to serious for existing registrations, • Revisions to Air Quality Control Commission (AQCC) Regulation Number 7, including, new requirements and restructuring of the regulation;



COLORADO
Air Pollution Control Division
Department of Public Health & Environment

Issuance	Date	Description
		• Revisions to facility-wide limitations; • Revisions to General Permit registration approval process.